

D.25/96 (OJ 1998, 45) ruled that the period of professional activity required for the EQE enrolment could not be served with a self-employed German patent agent who was not on the list of professional representatives.

A candidate may alternatively complete the prescribed period of professional activity as an employee, in accordance with Art. 11(2)(a)(ii) REE. The relevant conditions are not met where the candidate's employer is not represented before the EPO by the candidate in accordance with Art. 133(3) EPC, but by external patent attorneys, or where the candidate's main activity has been in the field of national or international applications and patents (**D.6/10**, with reference to **D.12/06** and **D.13/06**; see also **D.11/11**, with reference to **D.32/07**; furthermore **D.1/12** to **D.4/12**). Given the tenor of Art. 11(2)(a)(ii) REE, (mere) professional activity and activities pertaining to patent law cannot be treated as two distinct requirements. Professional activity can be recognised only if and for such time as candidates were able to represent their employer before the EPO and in fact did so. They must have been authorised to act as representative by their employer, but formal authorisation is not enough by itself, as it does not show whether, as required, they have actually worked in that capacity (**D.1/13**).

In **D.16/04** the board confirmed that the Examination Secretariat's practice of allowing only periods of professional activity completed after the required degree was obtained was not in conflict with Art. 10 REE 1994. Art. 10(1) REE 1994 mentioned the requirement of possessing a university-level scientific or technical or equivalent qualification first, followed by a reference to the conditions set out in paragraph 2, i.e. the three-year full-time training period to be completed by the date of the examination. The required length of the training period was a consequence of the candidate's technical or scientific degree acquired before starting the training period rather than vice versa. See also **D.6/08**. This is now a requirement under Art. 11(3) REE, which, in conjunction with R. 15(2) IPREE, also specifies how periods of professional activity may be aggregated to make up a full-time training period.

The period under Art. 11(2)(a) REE may be reduced by up to one year if a candidate has been a patent examiner at the EPO or the national patent office of a contracting state (R. 16(2) IPREE), and under Art. 11(2)(b) REE candidates who at the date of the examination have performed full-time the duties of an examiner at the EPO for at least four years are permitted to enrol without having previously worked in accordance with Art. 11(2)(a) REE. In **D.19/04** the board pointed out that corresponding provision Art. 10(2)(b) REE 1994 related to EPO examiners, who in view of their professional experience could be assumed to have a comprehensive knowledge of the European patent grant procedure. The professional experience of long-serving examiners in national offices could not be equated with that of EPO examiners.

2.2. Examination conditions – principle of equal treatment

2.2.1 Application of the EQE language rules

In **D.1/94** (OJ 1996, 468) the board ruled that a translation error could constitute a violation of Art. 11(3) REE 1991 (cf. Art. 12(3) REE, R. 5 IPREE), since this provision assumed a

totally correct translation into an EPO language from the official language of a contracting state selected by the candidate for his answers. In its decision, the Examination Board therefore had to give reasons why the translation errors had not been found to be serious.

In D.2/95 an argument that candidates whose mother tongue was not an EPO official language were at a disadvantage and should therefore be given more time did not convince the DBA that this amounted to an infringement of the relevant provisions. Similarly, in D.9/96 the appellant submitted that the linguistic regime of the REE contravened the principle of equal treatment of candidates. The board recalled that decisions of the Examination Board may in principle only be reviewed for the purpose of establishing that they do not infringe the REE, the provisions relating to its application or higher-ranking law (Art. 27(1) REE 1994; D.1/92, OJ 1993, 357; D.6/92, OJ 1993, 361). It conceded that not all candidates were treated equally since not all received examination papers in their mother tongue. However, this differentiation was a direct consequence of the linguistic regime of the EPC 1973. The official languages of the EPO were English, French and German (Art.14(1)EPC.1973). Each professional representative was inevitably confronted with documents and notifications in one of those languages and thus had to be expected, in the public interest and the interest of their clients, to understand at least one of them and be able to work on documents and notifications drafted in it. See also D.11/00. In D.30/05 the board further drew attention to the option for candidates to submit their answers in an official language of a contracting state which is not an EPO official language (Art. 15(3) REE 1994; cf. Art. 12(3) REE, R. 5 IPREE).

2.2.2 Other circumstances

In D.2/95 (see above), the fact that certain candidates had been allowed to use normal as opposed to copy paper for the examination was held not to be in breach of the provisions governing its conduct. Some candidates might find copy paper more awkward, but others might well prefer it. In fact, only two candidates had been allowed to use normal paper, for medical reasons.

In D.14/95 the appellant was a specialist in biochemistry, whereas Paper C was taken from mechanical engineering. The board found against any breach of the principle of equal treatment; the appellant's position was no different from that of any other candidate whose specialist field did not happen to be used in the paper as set. True, the examination procedure did in effect involve a certain "inequality". The Examination Board set a limited number of papers, and therefore had to make a choice amongst the different technical fields. So there would always be candidates who happened to be more specialised than others in the particular field selected. This however was inherent in any general examination, and thus did not constitute arbitrary unequal treatment. Furthermore, Paper C was less concerned with testing specialist technical knowledge than the ability to draft a notice of opposition to a European patent.

The background to several appeals (D.10/97, D.15/97, D.17/97 and D.5/97) was that some (but not all) copies of Paper D did not contain Question 11 and that the Examination Board automatically gave all candidates full marks for that question. The DBA reaffirmed D.14/95, which had stated that equal treatment did not have to be absolute, provided that the nature

and extent of any unequal treatment was justifiable in the circumstances. It would be wrong in law, however, if the examination conditions put certain candidates at a disadvantage for no good reason. The Examination Board had compensated the affected candidates in a way which appeared entirely appropriate. This necessarily involved a certain unequal treatment, which however was limited in its extent and acceptable in this special situation. In particular, it ensured that no candidate was worse off than if their answer had been marked objectively. The way in which the Examination Board had corrected the error did not constitute unlawfully unequal treatment.

The appeal in D.11/19 concerned the pilot project during the 2019 EQE session, in which 15 candidates selected at random were additionally permitted to use a laptop with a text editor during the examination. The appellant, who sat the examination under the regular conditions (cf. Art. 9(2)(b) REE and Instructions to candidates), submitted in his appeal that those candidates were given an unfair advantage. The board referred to the DBA's settled practice of reviewing whether the principle of equal treatment of EQE candidates has been adhered to as higher-ranking law (cf. D.2/95; D.14/95; D.10/97; D.5/99; D.19/04). It concluded that the arrangement of the pilot project was in breach of this principle because it meant that the respective groups of candidates were treated unequally without any objectively justifiable reason. See also D.15/19.

2.3. Complaints about the conduct of the examination – duties of the Examination Board

In D.17/96, D.2/97, D.2/99 and D.3/99, the DBA pointed out that, under the then applicable Instructions to candidates (OJ 1995, 145; see now OJ.2022.A20) and Instructions to invigilators (OJ 1995, 153; see now R. 19(3) IPREE), a timely and formally correct complaint about the conduct of the examination was to be submitted to the Examination Board, which was then to issue a provisional opinion, together with an invitation to comment. Failure to do so put it in breach of generally recognised principles of procedural law (Art.125 EPC), notably the right to be heard (Art.113(1) EPC).

According to D.3/04, the appealed decision did not show that the appellant's complaint about unsuitable conditions during the examination had been taken into consideration by the Examination Board. In the view of the DBA, where the Examination Board found the circumstances referred to in a complaint not to justify the allocation of additional marks, brief reasons should be given explaining why this was so. See now R. 19(4) IPREE.

In D.3/10 the appellant had raised a complaint about disturbances during the examination only with the appeal. The DBA held that it would be inadmissible to examine the alleged disturbances in the context of an appeal without any prior decision of the Examination Board in this regard. By not submitting a complaint immediately after the examination (cf. R. 19(3) IPREE), the appellant had deprived the Examination Board of the opportunity to determine the exact circumstances involved and to react accordingly, if necessary with a decision pursuant to R. 19(4) IPREE, or to deal with the allegations in its decision on the result of the examination under Art. 6(5) REE (cf. D.3/04 above).

The view taken in D.3/10 was endorsed in D.11/19. However, the board went on to examine the relevance of R. 19(3) IPREE to the case in hand. This concerned the special conditions of a pilot project in which 15 EQE candidates who had been selected at random (and did not include the appellant) were additionally permitted to use a laptop with a text editor during the examination. The board found that, as the pilot was conducted in a separate location, it had no adverse effect on the conduct of the examination according to the regular procedure, and the remaining candidates could not observe that it was taking place. Therefore R. 19(3) IPREE did not apply in the appellant's case. Moreover, since the appellant only became aware of the pilot at a later point, he could not have submitted, or reasonably have been expected to submit, an objection until filing the appeal. Indeed, in the context of the rectification procedure (Art. 24(3) REE), the Examination Board could and should have reconsidered its decision on the examination result in the light of the appellant's submissions.

2.4. Setting, marking and grading

The examination committees prepare the examination papers and marking sheets (Art. 8(1)(a), (b) REE). They mark the answer papers, each paper being marked by two committee members (examiners) separately, on a scale from zero to 100, and propose the grades to be awarded for each paper: "Pass", "Fail" or "Compensable fail" (Art. 8(1)(d), (e) REE, R. 6(1), (3) IPREE; cf. Art. 8(b) REE 1994). The committee members carry out these duties subject to instructions from the Examination Board, including for marking candidates' answers consistently (Art. 6(2)(c) REE). The Examination Board scrutinises the marks proposed for each paper and decides whether a candidate should pass or fail the examination, and may also revise marks or order a re-marking according to a revised marking sheet (Art. 6(5) REE). To pass the examination, a candidate must have passed each paper or have obtained the minimum grades as specified in the IPREE (Art. 14(1) REE, R. 6(4) IPREE). A candidate who fails the examination may resit the paper or papers not passed (Art. 16(1) REE). For the pre-examination, see also Art. 1(7) REE, R. 6(2) and R. 10 IPREE.

On the Examination Board's implied obligation with regard to preparing the examination papers and corresponding marking scheme correctly, see D.6/13, summarised in this chapter V.C.2.6.3.

2.4.1 Setting and marking the pre-examination

The pre-examination is a single paper (R. 10(2) IPREE), set in multiple-choice form. In several decisions, the DBA held statement 5.4 in the German version of the 2016 pre-examination paper to have been unclear and confusing. In some cases (e.g. D.1/16, D.4/16 and D.15/16), the additional points awarded resulted in the candidate achieving the "PASS" grade. Challenges to other statements in the same paper were, however, rejected (e.g. D.5/16, D.6/16, D.10/16). In D.5/16 the board concluded with some general remarks, as follows. It was essential to ensure that the questions to be answered and any statements to be evaluated in a multiple-choice examination such as the EQE pre-examination were formulated clearly and unambiguously. It was crucial to formulate statements in such a way that clearly only one "True" or "False" answer was possible and

"correct" in the circumstances (see also D. 6/16, and later decision D. 3/19, citing D. 13/02). However, concerning the ambiguity of words and the relevance of the factual context of questions, if a question was logical and made sense, so that, using common sense, it was clear what answer was expected, candidates could not rely on exceptions to the rule or explore alternative interpretations with a view to showing that a different answer might also be conceivable in specific instances. See also D. 3/14, reported in this chapter V.C.2.6.4 "Review of the marking of the pre-examination".

2.4.2 Case law on pre-examination questions and marking not applicable to the EQE

The DBA has made it clear that the case law on the questions and marking of the pre-examination is not applicable to the EQE because the former leaves no room for discretionary marking. Thus, according to D. 20/16, the decisive difference between the pre-examination (R. 10 IPREE) and the EQE, in particular Paper A (R. 23 IPREE), is as follows. In the former, candidates are expected to respond to clearly defined questions or statements in a multiple-choice mode, to which they can only answer "true" or "false" by ticking a box; they have no possibility to add any reasons or explanatory notes. In the latter, candidates can offer solutions which they find meet the requirements of R. 23 IPREE, and even, if need be, give reasons for their proposals in supplementary notes (R. 23(6) IPREE). For Paper A, the members of the Examination Board have a broad discretion when awarding marks. See also e.g. D. 16/17.

2.4.3 Marking the EQE answer papers consistently

On the principle of consistency of marking (Art. 6(2)(c) REE; cf. Art. 16 REE 1994, English version, "uniformity of marking"), the board in D. 4/99 stated that the appellant's starting point, namely that in case of non-identical marks by the two examiners only one value could be the correct one, was irreconcilable with the fact that marking was an individual assessment of the candidate's work. Rather, more or less strict standards were possible and different aspects might be considered essential or less important even within the general instructions for marking contained in the IPREE 1994. Examiners must have some latitude of evaluation when awarding marks and individual examiners might arrive at different marks, both results being justifiable. Therefore, differences in marking did not violate the REE 1994 and its IPREE (D. 5/94, D. 6/98). In order to safeguard the principle of equal treatment, harmonisation of marking was provided for in the marking sheets. If the marking was different, the two examiners might revise their marks on the basis of a discussion between them. The examination committee recommended the grade, and the Examination Board adopted it or otherwise, in full knowledge of the different marks awarded by the two examiners. This system ensured uniformity of marking (Art. 16 REE 1994; D. 12/82, OJ 1983, 233).

The following decisions confirmed this approach. According to D. 6/99, small differences in marking were an unavoidable consequence of Art. 8(b) REE 1994. The board was not aware of any provision supporting the submission that in such cases only the better mark awarded in each category of the paper should be counted. In D. 12/00 the board rejected the appellant's claim that any discrepancy between the markings of each examiner showed gross disregard for the principle of uniformity within the meaning of